

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 1889 of 2024

In the matter of:

An application under article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

In the matter of:

Md. Belayet Hossain

... Petitioner

-Versus-

Government of Bangladesh and others

... Respondents

Mr. Ruhul Ameen, Advocate

... For the respondent No. 3.

Judgment on: 21.08.2025

Present:

Justice Sardar Md. Rashed Jahangir

And

Justice Md. Abdul Mannan

Sardar Md. Rashed Jahangir, J:

On an application under article 102 of the Constitution of the
People's Republic of Bangladesh, the Rule Nisi was issued on
15.02.2024 as follows:

“Let a Rule Nisi be issued calling upon respondents to show
cause as to why the impugned auction notice, published by the
respondent No.3 in the ‘Daily Sangbad’ on 02.02.2024, fixing
the date of auction on 18.02.2024, for selling the petitioner's
properties, as described in the schedule of the said auction
notice, as evidenced by Annexure-B, shall not be declared to
have been published without lawful authority and to be of no
legal effect.”

Under the case in hand, the petitioner has challenged the publication of the auction notice dated 02.02.2024 in the 'Daily Sangbad' purportedly under section 12(3) of the Artha Rin Adalat Ain, 2003 for selling the mortgaged property in auction scheduled to be held on 18.02.2024. On 13.02.2024 the writ petition has been sworn in and on 15.02.2024, this Court was pleased to issue Rule Nisi in tandem with an interim order of stay of all further proceedings of the auction pursuant to the notice.

The respondent No. 3 by filing an affidavit-in-opposition apprised this Court that the property cannot be sold in auction due to the order of stay of this Court and the scheduled date of the auction i.e. 18.02.2024 has been expired in the meantime and as such the impugned auction notice published on 02.02.2024 in the 'Daily Sangbad' purportedly section 12(3) of the Artha Rin Adalat Ain, 2003 has no effectiveness, consequently the Rule has become infructuous.

Considering the facts and circumstances of the case, the Rule is discharged.

No order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby by recalled and vacated.

Communicate the order at once.

Md. Abdul Mannan, J:

I agree.